

02:00 PM

24-CIV-08298 FABIOLA BARAJAS LOZANO VS. FCA US, LLC., ET AL.

LINE 6

FABIOLA BARAJAS LOZANO
FCA US, LLC.

LARRY W. CHAE
BRADFORD G. HUGHES

DEFENDANT: FCA US, LLC'S MOTION TO COMPEL PLAINTIFF FABIOLA BARAJAS LOZANOS INTITAL RESPONSES TO DEFENDANTS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (1) AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$608.00

TENTATIVE RULING:

The unopposed motion is granted. Plaintiff shall serve verified responses, without objection, to defendant's Request for Production of Documents, Set One, within 14 days. The request for sanctions is also granted. Plaintiff shall pay defendant \$368 (\$148 plus \$160 plus \$60) within 30 days.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL.

LINE 7

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

PLAINTIFF: JOSH RAFFAELLI'S AMENDED NOTICE OF MOTION TO COMPEL PRODUCTION OF WITNESSES FOR DEPOSITION AND DEFENDANTS MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

This tentative addresses both line 7 and line 9 of this Calendar. Plaintiff Josh Raffaelli ("Plaintiff") moves to compel the depositions of Defendants Anuj Ranjan and Nicholas Sammut (collectively, "Defendants"). Defendants move for a protective order staying their depositions until certain recordings and transcripts in Plaintiff's possession are produced.

Defendants' motion for a protective order is GRANTED.

Plaintiff's motion to compel is DENIED in light of the issuance of the protective order but the Court would consider (and believes there would be good cause) setting an expedited schedule at hearing on July 13, 2026 for these depositions, consistent with the protective order, if the Plaintiff wishes and timely notices an intention to appear. It is unclear to the Court if Plaintiff will continue to pursue expedited deposition(s) if this Order becomes final.

Background

Plaintiff was formerly Managing Director of Brookfield's Venture Capital ("VC") group. (TAC, ¶¶ 1, 40.) It is alleged that Defendant claimed that on November 14, 2024, Defendant Ranjan informed Plaintiff during a call that Brookfield had decided to transition management of the funds elsewhere, and that Plaintiff's employment would be terminated. (Id., at ¶¶ 12, 150.)

The parties apparently hotly dispute statements made during a phone call November 14, 2024. Plaintiff claims that Mr. Ranjan did not inform him of his impending termination during that call and that Brookfield allegedly did not decide to terminate Plaintiff's employment until after November 22, 2024, the date he informed Brookfield that he had filed a purported whistleblower complaint with the Securities and Exchange Commission. (Id., ¶¶ 12, 155.) Defendants apparently claim that Mr. Ranjan informed Plaintiff of the decision to terminate during the November 14, 2024 call. (Oppo., 8:4-6.)

Plaintiff recorded the November 14, 2024 call and is in possession of the recording and a transcript of that conversation, as well as other conversations with his colleagues. (Reilly Decl., ¶ 2.) Defendants do not have possession of the recordings or the transcripts. (Id.)

Defendant made multiple demands to Plaintiff to provide the November 14, 2024 recording, and any other recordings, before Plaintiff filed this action. (Reilly Decl., ¶ 3.) Plaintiff filed this action on May 8, 2025. On July 25, 2025, Defendants' counsel demanded in writing that Plaintiff's counsel produce by
